TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar**. Do not call the department to verify if you should appear or not. Please read below for the information. If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties. If the moving party has submitted the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by **12:00 p.m**. the day before of the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling**.

February 24, 2026
10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	**Okino vs. Ashe** **25-01455183**	**1. Demurrer to First Amended Complaint** **2. Case Management Conference** Defendant, City of Anaheim (the "City"), demurs to the third cause of action of the First Amended Complaint ("FAC") of Plaintiff, Drew T. Okino. The City brings this demurrer on the grounds that the third cause of action for dangerous condition of public property fails to state facts sufficient to constitute a cause of action and is uncertain, citing to Code of Civil Procedure section 430.10(e)-(f). The City contends that the alleged dangerous condition of public property is not pled with specificity as Plaintiff's definition of "Subject Roadway" is vague, ambiguous, and uncertain. The City also contends that how the alleged location is dangerous is unclear, and that Plaintiff has not alleged with specificity why any of the locations, including the onramp/offramp or intersection leading to

		the freeway at Gene Autry Way, qualify as a dangerous condition. A demurrer may be brought on the grounds that the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc. § 430.10(e).) It may also be brought on the ground that the pleading is uncertain. (Code Civ. Proc. § 430.10(f).) "As used in this subdivision, 'uncertain' includes ambiguous and unintelligible." (Ibid.) Government Code section 835 states: Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (c) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (d) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition. (Gov. Code § 835(a)-(b).) Government Code section 835 ". . . 'expressly authorizes two different forms of dangerous conditions liability: an act or omission by a government actor that created the dangerous condition (§ 835, subd. (a)); or, alternatively, failure "to protect against" dangerous conditions of which the entity had notice (id., subd. (b)).' [Citation.]" (Kabat v. Department of Transportation (2024) 107 Cal. App. 5th 651, 660.)

		"The phrase 'protect against' includes 'warning of a dangerous condition.' § 830, subd. (b).)" (Ibid.) "To establish liability under section 835, a plaintiff must show: '(1) "that the property was in a dangerous condition at the time of the injury"; (2) "that the injury was proximately caused by the dangerous condition"; (3) "that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred"; and (4) either (a) that a public employee negligently or wrongfully "created the dangerous condition" or (b) that "[the] public entity had actual or constructive notice of the dangerous condition a sufficient time prior to the injury to have taken measures to protect against the dangerous condition." ' [Citation.]" (Tansavatdi v. City of Rancho Palos Verdes (2023) 14 Cal.5th 639, 653.) "[B]ecause under the Tort Claims Act all governmental tort liability is based on statute, the general rule that statutory causes of action must be pleaded with particularity is applicable. Thus, 'to state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity.' [Citations.]" (Lopez v. Southern Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 795; Zipperer v. County of Santa Clara (2005) 133 Cal.App.4th 1013, 1020 [same].) Allegations in a complaint must be liberally construed but they must not be so liberally construed so as deny the defendant adequate notice to defend the case. (People ex rel. Dept. of Transportation v. Superior Court (1992) 5 Cal.App.4th 1480, 1485.) "[A] claim alleging a dangerous condition may not rely on generalized allegations [citation] but must specify in what manner the condition constituted a dangerous condition. [Citation.]" (Brenner v. City of El Cajon (2003) 113 Cal.App.4th 434, 439-440.) " 'A dangerous condition of public property can come in several forms and may be based on an "amalgam" of factors.' [Citation.]" (Thimon v. City of Newark (2020) 44 Cal.App.5th 745, 754.)

		This action arises out of the following an incident which occurred on or about January 14, 2024, where it is alleged that Defendant Jacob E. Ashe was driving his Dodge Charger travelling Southbound on the Northbound side of Interstate Highway 5, near the State College Boulevard/Gene Autry Way onramps/offramps when it struck and collided head on with Plaintiff Honda Accord which was traveling Northbound on Interstate Highway 5. (FAC, Introduction, ¶ 15.) While the FAC alleges that the public entity defendants, including the City were "responsible for the conditions of the Northbound Interstate Highway 5 and area adjacent thereto," Plaintiff then alleges specific facts as to the location of the alleged dangerous condition, i.e., "the Northbound Interstate 5 HOV onramp/offramp, in or at the Gene Autry Way entrance/exit, including . . . the intersection that leads to the Northbound 5 HOV onramp/offramp, in or at the Gene Autry Way entrance/exit, and the Northbound Interstate 5 HOV onramp/offramp extending from the point of entry that allows for entry onto the Northbound Interstate 5 HOV onramp/offramp traveling in the wrong direction without an adequate shoulder or ability to exit the same, and continuing to and including the point where the Northbound Interstate 5 HOV onramp/offramp at Gene Autry Way meets the Northbound Interstate 5." (FAC, ¶ 3.) That this encompasses a large area does not make the location of the dangerous condition(s) uncertain. To the extent that there may be a precise location of the dangerous condition within this area, that may be clarified in discovery. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. "(Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) " '. . . "[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably

		respond." [Citation.]' [Citation.] (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) The nature of the dangerous condition is also pled with sufficient particularity. Plaintiff specifically alleges that the City, among other public entity defendants, "failed to provide an adequate and/or properly functioning traffic control signal and/or signage and/or roadway that made it clear what part of the Subject Roadway a vehicle was entering, failed to post necessary safety warning(s) or other safety features before or at the intersection of Subject Roadway entrance, and/or failed to take any actions to eliminate and/or reduce the known significant risk and danger to motorists on the Subject Roadway." (FAC, ¶ 35.) It is also alleged that "the Subject Roadway presented a dangerous condition of public property, in part, because there existed obscured sightlines caused by the design of the roadway, curvature of the roadway, elevation variances, adjoining land features, improper, insufficient and confusing barriers, striping and/or signage, ongoing construction, poor lighting, and improper, confusing, and/or nonfunctioning traffic control signs/signals that caused and/or contributed to the incident." (FAC, ¶ 32.) The FAC further alleges facts with particularity that Plaintiff's injuries were proximately caused by the dangerous condition as the I-5 HOV onramp/offramp, in or at the Gene Autry Way entrance/exit, did not have an adequate or properly functioning traffic control signal or signage that made it clear what part of the roadway a vehicle was entering, and that the Northbound I-5 HOV onramp/offramp allows for entry of vehicles traveling in the wrong direction without an adequate shoulder or ability to exit, such that Defendant Ashe entered the HOV lane the wrong way and collided with Plaintiff's vehicle which was traveling Northbound on the I-5, among other things. (FAC, Introduction, ¶¶ 3, 15, 32, 35.) These allegations also support the allegation that the dangerous condition that the City created presented a reasonably foreseeable risk

		of the kind of incident and injuries that occurred. (FAC, ¶ 36.) The City additionally asserts that Plaintiff makes only a vague and conclusory statement that the City of Anaheim was on actual or constructive notice of the dangerous condition, and has not alleged a single fact regarding the City of Anaheim's supposed notice other than a conclusory statement the City had actual or constructive notice. The FAC alleges that "Plaintiff is informed and believes and thereon alleges that [the City, etc.] had actual or constructive notice of the dangerous condition in sufficient time before the subject accident to have taken preventative and/or remedial measures. In fact, Plaintiff is informed and believes that the Subject Roadway was the site of similar incidents that resulted in injuries because of said dangerous conditions." (FAC, ¶ 34.) As the FAC alleges that the City had actual or constructive notice of the alleged dangerous conditions based on prior similar incidents due to the alleged dangerous conditions, the FAC appears to allege facts pertaining to this element with sufficient particularity. Lastly, the City asserts that Plaintiff has not pled that Defendant Jacob Ashe acted with due care, instead alleging at the time of the incident that he was intoxicated with a blood alcohol limit in excess of the legal limit. While the City asserts that due care must be pled, no authority is cited as stating that this is an element that must be pled to state a claim for dangerous conditions of public property. Additionally, the FAC alleges that the combination of factors, i.e., obscured sightlines caused by the design of the roadway, curvature of the roadway, elevation variances, adjoining land features, improper, insufficient and confusing barriers, striping and/or signage, ongoing construction, poor lighting, and improper, confusing, and/or nonfunctioning traffic control signs/signals, "created a chaotic and confusing traffic condition, significant risk, and an undisclosed trap for motorists,

		using due care in the operation of their vehicles." (FAC, ¶ 32.) "A public entity may be liable for a dangerous condition of public property even where the immediate cause of plaintiff's injury is a third party's negligent or illegal act (like Urzua's grossly negligent driving) if some physical characteristic of the property exposes its users to increased danger from third party negligence or criminality." (Cerna v. City of Oakland (2008) 161 Cal.App.4th 1340, 1348.) " ' "[T]hird party conduct, by itself, unrelated to the condition of the property, does not constitute a 'dangerous condition' for which a public entity may be held liable." ' [Citation.] There must be a defect in the physical condition of the property and that defect must have some causal relationship to the third party conduct that injures the plaintiff. [Citation.] '[P]ublic liability lies under [Government Code] section 835 only when a feature of the public property has "increased or intensified" the danger to users from third party conduct.' [Citation.]" (Ibid.) As discussed above, the FAC alleges defects in the physical condition of the Northbound Interstate 5 HOV onramp/offramp, in or at the Gene Autry Way entrance/exit, including the intersection that leads to the Northbound 5 HOV onramp/offramp, in or at the Gene Autry Way entrance/exit, and the Northbound Interstate 5 HOV onramp/offramp extending from the point of entry that allows for entry onto the Northbound Interstate 5 HOV onramp/offramp and continuing to and including the point where the Northbound Interstate 5 HOV onramp/offramp at Gene Autry Way meets the Northbound Interstate 5 which have a causal relationship to Defendant Ashe's wrong way entry on the I-5 HOV lane. Based on the foregoing, the Court OVERRULES the City's demurrer to the third cause of action.

		The City to file an Answer within 10 days. Plaintiff to give notice.
102	**Saetern vs. Wearmouth** **25-01475675**	Motion to Extend Time for Service of Process Plaintiff Chiew Saetern, an individual dba Fire Venture Capital, LLC ("Plaintiff") moves for an order to extend the time to serve process on Defendants Joshua Wearmouth and Velanos Principal Capital, Inc. The Motion is made pursuant to Code of Civil Procedure sections 415.50 and 583.240 as well as California Rules of Court 3.110(b) and (e). Plaintiff's motion to extend the time to serve process on Defendants Joshua Wearmouth and Velanos Principal Capital, Inc. is GRANTED. The Court finds that Plaintiff has sufficiently met the requirements pursuant to California Rules of Court 3.110 and Code of Civil Procedure section 583.240 and that a 30 day extension to serve the Complaint is appropriate under the circumstances.
103	**Reyes-Schiller vs. Hoffman** **23-01364350**	Motion to Set Aside/Vacate Dismissal Plaintiffs Audrey Reyes-Schiller and Raquel Soto move for an order vacating and setting aside Plaintiffs' voluntary dismissal with prejudice entered on September 8, 2025 pursuant to Code of Civil Procedure section 473(b) on the ground that dismissal was entered due to Plaintiffs' mistake, inadvertence, surprise, and neglect. "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473(b).) "Because the law favors

		disposing of cases on their merits, 'any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations].' " (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 980.) Defendant's objection numbers 1 and 2 to the Declaration of Audrey Reyes-Schiller are SUSTAINED pursuant to Evidence Code section 1119. The remainder of the objections are OVERRULED. Plaintiffs argue the dismissal should be vacated because it resulted from their excusable mistake. They argue that defense counsel represented that dismissal would resolve the matter without further action and omitted the fact that dismissal would expose them to liability for attorney fees. Plaintiffs also argue that defense counsel threatened them with additional suits and accusations, which constituted duress. Defendant Steven J. Hoffman, individually and as Trustee of the Hoffman Exemption Trust, created under the provisions of The Robert and Bobbie Hoffman Revocable Living Trust dated January 24, 2005 oppose the motion, arguing that Plaintiffs' dismissal was a deliberate litigation choice and not based on excusable neglect or mistake. Defendant further argues that counsel made his adversarial role as counsel for the opposing party known to Plaintiffs and their attempt to argue that counsel had any duty to advise them of the risk of exposure to attorney fees lacks merit. Many of the cases cited by Plaintiffs are inapt here, as either their facts are distinguishable or the provision of section 473 being applied is for mandatory relief due to attorney mistake, not discretionary relief. Olivera v. Grace (1942) 19 Cal.2d 570 involved a default judgment taken against a defendant who had been rendered incompetent due to a serious head injury. In re Marriage of Hock & Gordon-Hock (2000) 80 Cal.App.4th 1438, Yeap v. Leake (1997) 60 Cal.App.4th 591, and Solv-All v. Superior Court (2005) 131 Cal.App.4th 1003 involved application of the

		mandatory relief provision under section 473 for attorney mistake, inadvertence, surprise, or neglect. And Garcia v. Hejmadi (1997) 58 Cal.App.4th 674 involved the application of 473 relief in a request to vacate a granting of summary judgment based on the claimed inadvertent failure to present evidence. Plaintiffs' other authorities stand for the propositions that, while mistakes of law may be the basis of vacating defaults, "a mistake as to law does not require relief from default as a matter of law." (A & S Air Conditioning v. John J. Moore Co. (1960) 184 Cal.App.2d 617, 620.) "The issue of which mistakes of law constitute excusable neglect presents a fact question; the determining factors are the reasonableness of the misconception and the justifiability of lack of determination of the correct law." (Ibid.) "Although an honest mistake of law is a valid ground for relief where a problem is complex and debatable, ignorance of the law coupled with negligence in ascertaining it will certainly sustain a finding denying relief." (Ibid.) "In examining the mistake or neglect, the court inquires whether 'a reasonably prudent person under the same or similar circumstances' might have made the same error." (Bettencourt v. Los Rios Community College Dist. (1986) 42 Cal.3d 270, 276.) Reyes-Schiller asserts that during a September 2, 2025, phone call, defense counsel informed her that if she continued with the case, he would go after her for attorney fees over $100,000 and would sue for defamation. (Declaration of Audrey Reyes-Schiller ¶ 13.) She states that due to counsel's threats and representations, she agreed to drop the case and counsel advised that dismissing it would be best to fully end the matter. (Id. ¶ 14.) She states that counsel did not inform her that dismissing the action would make Defendants the prevailing party or expose Plaintiffs to attorney fees under the contract. (Ibid.) She claims she was unaware

		of the fee risks due to her pro per status and lack of legal knowledge. (Id. ¶ 16.) Plaintiffs' claims of ignorance regarding the exposure to fees are belied by evidence submitted by Defendant Steven J. Hoffman in opposition. In an August 20, 2025, email from defense counsel to Reyes-Schiller, defense counsel asserted that Defendant "preserved his right to fees as the prevailing party." (Declaration of Mark C. Bailey, Exhibit 1.) He goes on to state that "[a]t this stage, any discussion of settlement will focus on you and Ms. Soto paying Mr. Hoffman's fees and costs." (Ibid.) This evidence shows that Plaintiffs were aware of Defendant's claim of attorney fees and costs well before their dismissal was filed. To the extent Plaintiffs claim that they were misled because defense counsel omitted the fact that fees could still be obtained if they filed a dismissal, their mistake is not excusable. First, their purported reliance upon defense counsel's representations is unreasonable and a reasonably prudent person under similar circumstances would understand that counsel for the opposing side is representing only their clients own best interests and their own research is needed. Second, Plaintiffs' failure to ascertain the law before filing their dismissal, given that they were aware of the attorney fee provision in the contract, was not justified. (See Rappleyea, 8 Cal.4th at pp. 984 ["self-representation is not a ground for exceptionally lenient treatment"].) Based on the above, the Motion to Vacate is DENIED. Counsel for Plaintiffs to give notice.
104	**Saucedo vs. Preferred Roofing LLC** **25-01494949**	Motion to Be Relieved as Counsel of Record Joshua I. White and Preetpal S. Toor seek an order relieving them as counsel of record for Plaintiff Rodrigo Serrato Saucedo.

		Motion is denied for lack of Proof of Service and proposed order. Moving party to give notice.
105	**Thayer vs. Newrez LLC** **24-01428812**	Motion for Leave to File Second Amended Complaint Plaintiff Thomas Thayer moves for orders: (1) granting leave to file a proposed second amended complaint, a copy of which is submitted with the motion; and (2) continuing trial to at least January 2027 and extending all trial-related dates, including the discovery cut-off date. Under subdivision (a)(1) of Code of Civil Procedure section 473, the Court has discretion, after notice to the adverse party, to allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars. Under subdivision (a)(2) of the same section, the Court may postpone trial "[w]hen it appears to the satisfaction of the court that the amendment renders it necessary." Plaintiff has indicated that, in preparing for trial and conducting settlement negotiations, he has discovered that the actual facts underlying his case were different from those that he initially believed and that he therefore needs amend his complaint to add additional defendants and modify his causes of action. Plaintiff contends that the proposed amendment is necessary for him to obtain complete relief on his claims – especially the cause of action to quiet property. Plaintiff contends that a continuance of trial (and extension of trial-related dates, including the discovery cut-off date) is also necessary if he is permitted to file the proposed second amended complaint. Trial is currently scheduled for April 13, 2026 and plaintiff asks that it be reset to a date in January 2027 or later. Plaintiff indicates that the attorneys for the single

		defendant who has appeared in the action have agreed to the trial continuance. The Court GRANTS the motion. The unopposed motion of plaintiff Thomas Thayer for orders granting him leave to file a proposed second amended complaint and continuing trial and extending all trial-related dates, including the discovery cut-off date, is GRANTED. Plaintiff is to file the original second amended complaint and serve it on all defendants who have appeared within five Court days. The current trial date of April 13, 2026 is VACATED. The Court sets a CMC for June 23, 2026. Plaintiff to give notice.
106	**Mohannak vs. Alam** **25-01502064**	1. Motion for Preference 2. Case Management Conference Plaintiff, FAKHRI MOHANNAK and MOHAMMAD TAVASSOLI seek an order granting plaintiff trial preference and to advance the date of trial in the instant action. CCP§36(a) provides that, "A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole.

		(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.” CCP§36.5 provides that, “An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36." In this instance, Plaintiff is currently 78 years old. (Riccitelli Dec., para. 3.) Thus, she satisfies the requirement in CCP§ 36(a) that a party be over 70 years of age. Plaintiff’s negligence-based causes of action stem from injuries she incurred when she was hit by Defendant Alam. Thus, Plaintiff has a substantial interest in the action as a whole. (CCP§ 36 (a)(1).) Lastly, however, there is equivocal evidence as to whether Plaintiff’s health is such that trial preference status is necessary to prevent prejudicing her interests in the litigation. (CCP§ 36 (a)(2).) Attorney Riccitelli provides the following: Declaration of Attorney Andrew Riccitelli: 5. Plaintiff's physical condition has not fully resolved, and she continues to experience significant pain and functional limitations. She currently requires the use of a front-wheeled walker for ambulation and can only walk for approximately 5 minutes before needing to rest. She exhibits a severely antalgic gait pattern and remains at high risk for falls. Her Lower Extremity Functional Scale score is 23 out of 80, representing only 29% of maximum function.

		6. Based upon information and belief as to plaintiff's medical diagnosis and prognosis, plaintiff's current physical prognosis is guarded. She continues to require regular medical follow-up with orthopedic surgeons, physical medicine specialist6 [sic]. She requires assistance with many activities of daily living and has significant limitations in her ability to climb stairs, walk distances, stand for extended periods, and perform household tasks. Due to her advanced age, and the severity of her orthopedic injuries, there is substantial concern that her condition may deteriorate over time rather than improve. It is unclear what counsel means by "guarded". Also, while her condition "may deteriorate" over time, she could also improve over time given her injuries were orthopedic. Moreover, Defendants could be prejudiced as Defense counsel declares Plaintiffs have been frustrating discovery efforts. (Decl. of Gonter para. 6.) (Decl. of Diamond paras. 6-9.) As such, motion is DENIED WITHOUT PREJUDICE. Defendants Universal Protection Service LP d/b/a Allied Universal Security Services ("Allied") and The Irvine Company, LLC to give notice.
107	**Duncan vs. Hoskins** **16-00844595**	Petition to Confirm Arbitration Award Plaintiffs Kathleen Duncan, individually and as trustee of the Michel-Duncan Trust UTD April 26, 2025, and 3D Co Holdings, LLC petition the Court for an order confirming the arbitration award and entering judgment according to it. Plaintiffs have submitted a copy of the arbitration award as Attachment 4(b). Defendants Christopher Hoskins and defendant/cross-complainant Colorado Storage Partners, LLC. They contend that the Court cannot grant the petition because (1) plaintiffs failed to file or serve notice of the petition;

		and (2) the petition does not name all defendants as required by Code Civ. Proc. § 1285. The parties participated in binding non-judicial arbitration by order on stipulation entered by the Court on April 28, 2021. (ROA 651.) Earlier in the litigation the parties had entered into another stipulation that the nominal defendants, namely defendants Colorado Storage Partners, LLC, Paso Robles Holdings, LLC, Arroyo Robles Holdings, LLC and Airport Road Business Park, LP, would be bound by the final judgment entered in the litigation, and the Court had entered an order on that stipulation on February 10, 2017. (ROA 99.) Code of Civil Procedure section 1285 provides that "[a]ny party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award." It also states that "[t]he petition shall name as respondents all parties to the arbitration and may name as respondents any other persons bound by the arbitration award." The petition filed on November 21, 2025 (ROA 651) identifies the petitioners as plaintiffs Kathleen Duncan, an individual and as trustee of the Michel-Duncan Trust, and 3D Co Holdings, LLC. It identifies the respondents as Christopher Hoskins, 3H Investments, LLC, Colorado Storage Partners, LLC, Arroyo Robles Holdings, LLC, and Airport Road Business Park. Defendants contend that the petition is "fatally defective" because it does not name defendant Paso Robles Holdings, LLC, as a respondent. This contention is not well-taken because, among other things, the order on stipulation entered on February 10, 2017, identified this party as one of several nominal defendants who would be bound by the judgment entered in the case. In addition, responding defendants do not make any affirmative showing that Paso Robles Holdings actually participated in the litigation and the arbitration award itself (ROA 656) does not identify the

		actual participants in the arbitration. Under these circumstances, any omission to list Paso Robles Holdings as a respondent does not render the petition defective. Defendants also contend that plaintiffs failed to file and serve the petition. This contention also lacks merit because the first page of the petition shows the hearing date, time, and department, and a proof of service is submitted with the petition that shows service on counsel for the parties by e-service on November 21, 2026. Code of Civil Procedure section 1286 provides that "[i]f a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." See Law Offices of David S. Karton v. Segreto (2009) 176 Cal.App.4th 1, 9. ("If the trial court which does not dismiss the petition also does not correct or vacate an arbitration award, it must confirm the award.") Thus, although defendants contend that the petition is moot because defendant Christopher Hoskins has made the payment to plaintiff Kathleen Duncan required under the arbitration award, the Court must still confirm the judgment and enter judgment on its terms. Lastly, Code of Civil Procedure section 1287.4 provides that if an arbitration award is confirmed, the judgment entered has the same force as any other civil judgment and may be enforced accordingly. Simply because defendant Hoskins has paid the damages awarded to plaintiff does not mean that judgment cannot be entered. It simply means that the judgment has been paid.

		The petition of plaintiffs Kathleen Duncan, individually and as trustee of the Michel-Duncan Trust UTD April 26, 2025, and 3D Co Holdings, LLC for an order confirming the arbitration award and entering judgment according to it is GRANTED. Moving party to give notice,
108	**Meyer vs. City of Irvine** **22-01251857**	Motion to Enforce Court Order Defendant, City of Irvine (the "City"), moves for an order compelling Plaintiffs, Breana Meyer and Ryan Meyer to comply with the Court's Order dated May 20, 2025, whereby the Court Ordered for Plaintiffs to serve verified responses, without objections, to the City's Form Interrogatories, Set One, and Requests for Production of Documents, Set One, and to pay monetary sanctions in the amount of $600.00. The City also moves for an Order imposing additional monetary sanctions in the amount of $2,568.00 jointly and severally, against Plaintiffs and/or their attorney(s) Andy Basseri and the Law Offices of Andy Basseri. The City further moves for an Order issuing terminating sanctions and dismissing the City from this matter. Compel Compliance If a party fails to obey an order compelling answers to interrogatories or an order compelling a response, "the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010)," and "[i]n lieu of or in addition to that sanction, the court may impose a monetary sanction." (Code Civ. Proc. § 2030.290(c) [interrogatories]; 2031.300(c) [requests for production].)

		The evidence submitted establishes that Plaintiffs have failed to comply with the Court's order compelling discovery responses. On May 20, 2025, the Court granted the City's motion to compel responses from Plaintiffs, without objections, to the City's Form Interrogatories, Set One and Requests for Production of Documents, Set One, and ordered Plaintiffs to provide responses and pay sanctions in the amount of $600 within 30 days. (Declaration of Justin F. Spearman ("Spearman Decl."), ¶10, Ex. 8.) The evidence also shows that, to date, Plaintiffs have not served their responses and have not requested any extensions. (Id., ¶11.) The Court notes that the City was ordered to give notice of the Court's May 20, 2025 Order, and there is no evidence submitted that shows that the City gave notice of the Order to Plaintiffs, as ordered. The City provides that it extended a courtesy five days before notifying Plaintiffs' counsel on June 24, 2025, of its intention to file the instant motion should verified responses not be received by June 26, 2025, and references an follow-up email, but the evidence is insufficient to determine whether proper notice was given. (Spearman Decl., ¶ 9.) Nevertheless, Plaintiffs have not opposed the motion and do not claim lack of notice. The Court ORDERS Plaintiffs to serve verified responses to the City's Form Interrogatories, Set One, and Requests for Production, Set One, without objections, as well as to pay monetary sanctions in the amount of $600, in compliance with the Court's May 20, 2025, Order, within 30 days of the notice of ruling. Monetary Sanction The City requests an additional monetary sanction in the amount of $2,568.00 against Plaintiffs and/or their attorney of record. The court may impose a monetary sanction ordering that one engaging in conduct that is a misuse of the

		discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, included attorney's fees incurred as a result of that conduct. (Code Civ. Proc. § 2023.030(a).) The court shall impose a monetary sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Ibid.) Misuses of the discovery process include "[f]ailing to respond or to submit to an authorized method of discovery," and "[d]isobeying a court order to provide discovery." (Code Civ. Proc. § 2023.010(d), (g).) The Court GRANTS an additional monetary sanction in the amount of $300 per plaintiff, for a total amount of $600 against Plaintiffs, Breana Meyer and Ryan Meyer, and their counsel of record, Andy Basseri and the Law Offices of Andy Basseri, jointly and severally, to be paid within 30 days of the notice of ruling. Terminating Sanction The court may impose a terminating sanction against anyone engaging in conduct that is a misuse of the discovery process by an order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process, an order staying further proceedings by that party until an order for discovery is obeyed, an order dismissing the action, or any part of that action, of that party, or an order rendering a judgment by default against that party. (Code Civ. Proc. § 2023.030(d).) A court has broad discretion in selecting the appropriate penalty for a party's refusal to obey a discovery order, and the trial court's determination must be upheld absent an abuse of discretion. (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604 ("Lopez").) The discovery statutes "evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending

		with the ultimate sanction of termination." (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992.) "Although in extreme cases a court has the authority to order a terminating sanction as a first measure [citations], a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective [citations]." (Lopez, supra, 246 Cal.App.4th at pp. 604-605.) "In general, a court may not impose issue, evidence, or terminating sanctions unless a party disobeys a court order. [Citation.] 'The statutory requirement that there must be a failure to obey an order compelling discovery before the court may impose a nonmonetary sanction for misuse of the discovery process provides some assurance that such a potentially severe sanction will be reserved for those circumstances where the party's discovery obligation is clear and the failure to comply with that obligation is clearly apparent.' [Citation.]" (Moofly Productions, LLC v. Favila (2020) 46 Cal.App.5th 1, 11.) "In addition, terminating sanctions are appropriate only if a party's failure to obey a court order prejudiced the opposing party. [Citation.]" (Ibid.) A party's repeated failure to "participate in the discovery process" and "failure to pay the monetary sanctions the superior court ordered" constitute grounds for terminating sanctions. (Moofly Productions, LLC v. Favila (2020) 46 Cal.App.5th 1, 12 [finding party's conduct was sufficiently egregious to warrant terminating sanctions where party effectively failed to participate in the discovery process until after discovery was closed, then produced interrogatory responses that contradicted its earlier statements, and failed to pay the monetary sanctions ordered]; Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1106 [holding the party's persistent "pattern of failure or refusal to give meaningful responses to discovery" constituted grounds for terminating

		sanction]; Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 280, as modified on denial of reh'g (May 4, 2005) [affirming terminating sanction based on finding that "the record is replete with evidence of Dr. Mileikowsky's failures to answer discovery requests despite numerous extensions sought and granted. Time and again, he refused to respond despite the issuance of court orders and monetary sanctions"].) At this juncture, the Court finds that a terminating sanction is inappropriate and DENIES this request at this time. However, should Plaintiffs continue to disobey the Court's orders to provide responses to basic written discovery, the Court will be inclined to impose a terminating sanction. The City to give notice of the Court's May 20, 2025 Minute Order, and of this order.
109	**Prime Healthcare Services - Garden Grove, LLC vs. Optumcare Management, LLC** **23-01357480**	Motion to Seal Plaintiffs ("Prime Hospitals") move for an order sealing portions of documents filed in support of their Opposition to OptumCare Management, LLC's Motion for Summary Adjudication. Specifically, they seek to file under seal portions of the Declaration of Kenneth Wheeler and Exhibits 1-55 thereto; portions of the Declaration of Riley Robertson and Exhibits 58, 60, 70-72, 74, and 76 thereto; Exhibit A to the Declaration of Chris Fritz; and portions of their Separate Statement, Objections to Evidence, and [Proposed] Order on Objections to Evidence which quote from the transcript of the deposition of Ryan James. Under California Rules of Court, rule 2.550(d), the Court may order a record to be filed under seal if it finds that: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest

		will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal. 4th 1178, 1218.) The Wheeler Declaration and Exhibits 1-55 thereto include numerous references to patient names and account numbers. This information is confidential and protected and there is no public interest in this information that overrides the patients' right to privacy. (Manela v. Superior Court (2009) 177 Cal.App.4th 1139, 1150; Oiye v. Fox (2012) 211 Cal.App.4th 1036, 1070.) If the requested portions of the Declaration and attached exhibits are not sealed, the right to privacy of these nonparty patients will be severely prejudiced and the requested sealing is narrowly tailored. Thus, the Motion as to Exhibits 1-55 of the Wheeler Declaration and the paragraphs thereof describing the contents of Exhibits 1-55 is GRANTED. The Robertson Declaration also contains private information regarding patient names, account numbers, dates of service, and claim numbers. Thus, the Motion to Seal the redacted portions of paragraphs 5, 7, 20, 21, and 24-26 and Exhibits 58, 60, 71, 72, 74 and 76 is GRANTED. However, Exhibit 70 to the Robertson Declaration, excerpts of the deposition transcript of Ryan James, does not appear to contain any PHI or other information that supports its sealing. The Motion to Seal as to Exhibit 70 is therefore DENIED. Exhibit A to the Fritz Declaration contains claim numbers and account numbers. The Motion to Seal as to Exhibit A is GRANTED. Prime Hospitals request to seal portions of their Separate Statement, Objections to Evidence, and [Proposed] Order on Objections to Evidence. The portions Prime Hospitals seek to redact contain direct quotes from the transcript of the deposition of Ryan James. However, because the transcript itself need not

		be sealed, portions of these documents contain quotes from the transcript also need not be sealed. Thus, the Motion to Seal is DENIED as to these remaining documents. Prime Hospitals to give notice.
110	**Tong vs. Le** **25-01523131**	Order to Show Cause re: Preliminary Injunction Plaintiffs Nhuan Nguyen Tong, individually, and as Attorney-in-Fact for Hoang Tong; Hoang Tong, individually; and Karen Tong, individually, and as Successor Trustee of the Hoang & Nhuan Nguyen Tong Family Trust ("Plaintiffs") seek an order for a preliminary injunction wherein Defendants and each of them, and their officers, agents, servants, employees, representatives, brokers, licensees, escrow/title agents, and all persons acting in concert with any of them are restrained and enjoined from: "1. Enforcing, performing, assigning, recording, or attempting to record any deed, memorandum, or instrument arising from or purporting to effectuate the Commercial Purchase Agreement for 14891 Moran Street, Westminster, CA 92683, dated September 12, 2025 (the "Agreement"). 2. Opening, proceeding with, or closing any escrow related to the Agreement, and that any escrow or title company (once identified) is enjoined from closing or recording any instrument arising from the Agreement. 3. Clouding title to the Property, including filing or recording any lis pendens, memorandum of contract, or other encumbrance based on the Agreement. 4. Directly communicating with Plaintiffs concerning the Agreement or any replacement, waiver, or related form including any "Seller Non-Agency Agreement" or similar document, outside the presence of or without the consent of Plaintiffs' counsel, including soliciting

		any additional signatures, confirmations, or communications intended to induce action by Plaintiffs; 5. Engaging in any retaliatory, coercive, or threatening conduct intended to induce or compel Plaintiffs' performance of the Agreement, including but not limited to threats of litigation, specific performance, or other adverse action against the elder Plaintiffs, except through counsel." The Motion for a Preliminary Injunction is unopposed. Defendants HANG THANH LE, individually and as Trustee of the KHL 2010 Family Trust; KHANG HUU LY, individually and as Trustee of the KHL 2010 Family Trust; PHU THI NGOC LE, individually; VIVIENNE TRAN, individually, dba CALI HOME REALTY did not file an opposition to the motion for preliminary injunction despite receiving notice of the hearing on the OSC re Preliminary Injunction. (ROAs 38 and 41.) The unopposed Motion for a Preliminary Injunction is GRANTED. The court may consider Defendants' non-opposition as an abandonment of any opposition to the claims raised by Plaintiff in the moving papers. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20; DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566, as modified (Jan. 25, 2000) ["By failing to argue the contrary, plaintiffs concede this issue."]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [holding that "by failed to address" an issue, the issue is "impliedly concede[d]."]; and Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 ["Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot."].) The Court notes, however, that it does not construe Defendants' non-opposition as a concession on the merits of the case.

		Afterall, a ruling on an application for preliminary injunction is NOT an adjudication on the merits of the ultimate rights in controversy. (Shoemaker v. County of Los Angeles (1995) 37 Cal.App.4th 618, 625 [the "decision [on the preliminary injunction] does not constitute a final adjudication of the ultimate rights in controversy."].) It merely represents the trial court's discretionary decision whether defendant should be restrained from exercising a claimed right pending trial. (Cohen v. Board of Supervisors (9185) 40 Cal.3d 277, 286.) Given the above, the Motion for a Preliminary Injunction is GRANTED. Defendants HANG THANH LE, individually and as Trustee of the KHL 2010 Family Trust; KHANG HUU LY, individually and as Trustee of the KHL 2010 Family Trust; PHU THI NGOC LE, individually; VIVIENNE TRAN, individually, dba CALI HOME REALTY and each of them, and their officers, agents, servants, employees, representatives, brokers, licensees, escrow/title agents, and all persons acting in concert with any of them are restrained and enjoined from: 1. Enforcing, performing, assigning, recording, or attempting to record any deed, memorandum, or instrument arising from or purporting to effectuate the Commercial Purchase Agreement for 14891 Moran Street, Westminster, CA 92683, dated September 12, 2025 (the "Agreement"). 2. Opening, proceeding with, or closing any escrow related to the Agreement, and that any escrow or title company (once identified) is enjoined from closing or recording any instrument arising from the Agreement. 3. Clouding title to the Property, including filing or recording any lis pendens, memorandum of contract, or other encumbrance based on the Agreement.

		4. Directly communicating with Plaintiffs concerning the Agreement or any replacement, waiver, or related form including any "Seller Non-Agency Agreement" or similar document, outside the presence of or without the consent of Plaintiffs' counsel, including soliciting any additional signatures, confirmations, or communications intended to induce action by Plaintiffs; 5. Engaging in any retaliatory, coercive, or threatening conduct intended to induce or compel Plaintiffs' performance of the Agreement, including but not limited to threats of litigation, specific performance, or other adverse action against the elder Plaintiffs except through counsel. Plaintiffs to give notice.
111	**Toro vs. FCA US, LLC** **22-01280342**	1. Motion for Attorney Fees 2. Order to Show Cause re: Dismissal on Settled Case Plaintiff Miguel Toro Jr. ("Plaintiff") moves for attorney fees and costs in the amount of $20,514.85, which consists of (1) $11,677.00 in attorney fees for Strategic Legal Practices, APC ("SLP"); (2) a 1.35 multiplier enhancement on the attorney fees (or $4,086.95); (3) $2,750.90 in costs and expenses for SLP; and (4) an additional $2,000.00 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply, and attend the hearing on this Motion (though counsel expects to incur over $2,000.00 in fees on these tasks). Defendant FCA LLC opposes the motion, arguing that the Court should award Plaintiff no more than $2,795.00. The Song-Beverly Consumer Warranty Act provides remedies for consumers that have purchased, among other consumer goods, new vehicles. Remedies include the right to recover "damages and other legal and equitable relief." (Civ. Code, § 1794, subd. (a).) Further, any buyer that prevails in an action brought under the Act shall recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the

		commencement and prosecution of such action." (Civ. Code, §1794, subd. (d).) The moving party plaintiff bears the burden of showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34; *Levy v. Toyota Motor Sales, U.S.A., Inc*. (1992) 4 Cal.App.4th 807, 816.) "To determine a reasonable attorney fee award, the trial court applies the lodestar method." (*Reck v. FCA US LLC* (2021) 64 Cal.App.5th 682, 691.) "[T]he lodestar method vests the trial court with the discretion to decide which of the hours expended by the attorneys were 'reasonably spent' on the litigation" [citation], and to determine the hourly rates that should be used in the lodestar calculus." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35, *as modified* (Oct. 11, 2019).) Courts shall consider the following factors in determining whether the time expended and fees requested are reasonable: "the complexity of the case and procedural demands, the skill exhibited and the results achieved." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34, *as modified* (Oct. 11, 2019); *Reck v. FCA US LLC* (2021) 64 Cal.App.5th 682, 691 ["These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved."].) "If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 36, *as modified* (Oct. 11, 2019).) "The reasonable hourly rate is that prevailing in the community for similar work." (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157.) "The relevant "community" is generally based on where the services are rendered, i.e., where the court is located." (*Ibid*.) "Accordingly, the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community in Orange County." (*Ibid*.)

		Notably, "it is inappropriate and an abuse of a trial court's discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff's damages or recovery in a Song-Beverly Act action." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35, *as modified* (Oct. 11, 2019).) In considering whether to apply a multiplier (positive or negative) the court should conder the following and other relevant circumstances: complexity of the case, procedural demands, delay by the opposing party, and litigation tactics used by the opposing party. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.) Here, the Court finds that the attorney fess sought are reasonable and is not persuaded by Defendant's arguments that the attorney fees sought and time spent are unsupported, excessive, cumulative, and unnecessary. Accordingly, the motion is GRANTED as to the $11,677.00 in attorney fees. The Court notes that Defendant has not provided any authority that prevents the Court from ruling on the costs sought in the motion. Plaintiff provided an itemized list of costs such that Defendant could easily address whether the costs are allowable under Code of Civil Procedure section 1033.5. (ROA 159, Declaration of Payam Shahian, ¶ 23, Ex. 1.) Based on the Court's review, all costs appear allowable pursuant to section 1033.5. As such, the motion is GRANTED as to the $2,750.90 in costs. The Court declines to apply a multiplier given that the case is not complex or procedurally demanding. The Court also finds that Defendant did not delay the case or use litigation tactics that would justify the application of a multiplier. The Court DENIES the Motion as to the requested "1.35 multiplier enhancement on the attorney fees (or $4,086.95)." Last, the Court finds that the $2,000.00 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply, and attend the hearing on this Motion is reasonable as well. In sum, the Motion is GRANTED in the amount of $11,677.00 in attorney fees plus $2,000.00 in attorney fees for reviewing the opposition, drafting the reply and responses to Defendant's objections, and attending the hearing on this motion plus $2,750.90 in costs.

		The Motion is DENIED as to the "1.35 multiplier enhancement on the attorney fees (or $4,086.95)." Plaintiff's requests for judicial notice are GRANTED. "A court may take judicial notice of the [e]xistence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments." (*People v. Franklin* (2016) 63 Cal.4th 261, 280.) Likewise, "Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, *but do not take judicial notice of the truth of the factual matters asserted in those documents*." (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400, *as modified* (Jan. 6, 2023) [emphasis in original].) Defendant's objections to the Declaration of Payam Shaian are OVERRULED. Defendant's objections to the Declaration of Richard Kwak are OVERRULED. Plaintiff's objections to the Declaration of Colin Cronin are OVERRULED. Plaintiff to give notice.
112	**Szeto vs. Woo** **19-01087212**	Motion for Attorney Fees x 2 Defendants/cross-complainants Kent Salveson and EQD LLC move for an order granting them an award of attorney's fees against plaintiff/cross-defendant Gene Szeto, jointly and severally with his counsel Shun C. Chen, in the sum of $30,247.80 in conjunction with their opposition to Szeto's anti-SLAPP motion and $55,000.00 in conjunction with Szeto's unsuccessful appeal of the denial of the anti-SLAPP motion. Based on a hearing date of February 24, 2026, the last day to serve the moving papers by electronic means or mail was January 27, 2026 and January 23, 2026, respectively. (Code Civ. Proc., §§ 1005(b), 1013(a),

		1010.6(a)(3)(B).) The moving papers were not served by mail and email until January 28, 2026. In light of the failure to provide adequate notice, the Motion for Attorney Fees is DENIED. Moving party to give notice. ---- Defendant/Cross-Complainant Sung Yi ("Yi") moves for an award of attorney's fees of $33,325.10 plus costs in the amount of $922.52 pursuant to CCP §425.16(c), for defending against the appeal by Plaintiff/Cross-Defendant Gene Szeto ("Szeto"). The motion is DENIED. On July 30, 2024, this Court issued an award of Attorney's Fees and Costs in favor of Yi, to be assessed jointly and severally against Szeto and his counsel. (ROA 505.) The award was issued pursuant to CCP §425.16(c), based on a finding that Szeto had filed a frivolous anti-SLAPP motion. (*Id.*) Szeto appealed the award. On July 2, 2025, the appellate court reversed and remanded, finding that this Court failed to provide specific findings of fact supporting the award as required by statute. (ROA 546.) The appellate court's remand included the following instructions: > On remand, the trial court is directed to either enter a new sanctions order in accordance with sections 425.16, subdivision (c), and 128.5, subdivision (c), or in the alternative, deny sanctions. In the interests of justice, neither party shall recover costs on appeal. (Cal. Rules of Court, rule 8.278(a)(5).) (ROA 546.)

		On July 10, 2025, this Court issued a new order with the requisite findings. (ROA 547.) On July 21, 2025, Yi filed the instant motion, seeking additional fees and costs incurred on appeal. Yi cannot recover costs on appeal because the appellate court expressly ordered that "neither party shall recover costs on appeal." (ROA 546 at p. 6.) However, an appellate order directing the parties to bear their own costs of the appeal generally has no bearing on a party's ability to seek appellate attorney fees in the trial court. (See *Stratton v. Beck* 30 Cal.App.5th 901, 909-914.) As applicable here, "[t]he trial court's authority to award fees and costs under section 425.16, subdivision (c), includes authority to award fees incurred in responding to an appeal of an order granting or denying a special motion to strike, or of an order awarding attorney fees in connection with such motion. (*Carpenter v. Jack in the Box Corp.* (2007) 151 Cal.App.4th 454, 461 (citing *Wilkerson v. Sullivan* (2002) 99 Cal.App.4th 443, 448.) CCP §425.16(c)(1) provides that "[i]f the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5." (CCP §425.16(c)(1).) The prevailing party seeking fees and costs bears the burden of establishing entitlement to the award and documenting the hours expended and the hourly rates. (*City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 784) Here, Yi has not met his burden on the motion. In connection with the motion, Yi submitted the

		declaration of attorney Fred Fenster, who provides details about his credentials, as well as the other attorney who purportedly worked on the appeal. (See, generally, Fenster Decl.) An itemized invoice is attached (Fenster Decl. ¶¶3, 7, Exh. C.) The work depicted in the invoice includes reviewing the opening brief, preparing Respondent's brief, and preparing for and attending oral argument. (Fenster Decl. Exh. C.) While the above entries at first blush appear fairly routine, Szeto contends in his opposition that the fees were not actually incurred, as Yi did not participate in the appeal. Specifically, Szeto contends that Yi did not file a Respondent's brief or request oral argument. Szeto's contentions are credible. The appellate court's opinion indicates "No appearance for Defendant, Cross-complainant, and Respondent Sung Yi." (ROA 546.) Further, review of the docket shows that on 11/7/24, Respondent was notified "re failure to file respondent's brief," and on 11/25/24 notations were made that there was "no reply by respondent to notice re failure to file brief" and "[n]o brief filed by responded after 8.220(a)(2) notice." (Chen Decl., Exh. 1.) Yi did not file a reply to the motion, and therefore apparently concedes that the fee request is not reasonable, and that the hours were not actually expended. The Court also notes that, in addition to the above issues, it is questionable whether an attorney fee award would be appropriate in this instance where, although Yi ultimately received a trial court award in his favor, the appeal from the initial order was not clearly frivolous. Accordingly, the motion is DENIED. Moving Party to give notice.

113	**National Funding, Inc. vs. Gonzalez** **24-01421917**	Motion for Summary Judgment and/or Adjudication Plaintiff National Funding, Inc. ("Plaintiff") moves for summary judgment against defendants Gabriela Gonzalez, individually, and doing business as J & G Delivery Milk ("Borrower") and Juan Gonzalez ("Guarantor") on its five causes of action for breach of contract and breach of guaranty. Pursuant to the Separate Statement, Plaintiff entered into three separate Business Loan Agreements with Borrower on August 8, 2023, September 29, 2023, and December 12, 2023. (Separate Statement of Undisputed Material Facts ("SSUMF") Nos. 1, 15, 23.) Plaintiff deposited all monies required under the terms of the loan agreements and fully performed its obligations under the loans. (SSUMF Nos. 10-11, 21-22, 29-30.) Guarantor executed a personal guaranty for the indebtedness of Borrower in relation to the August 8 and September 29 loan agreements. (SSUMF Nos. 3-4, 14-15.) Borrower has defaulted on the loan agreements and, despite Plaintiff's demands for payment, both Borrower and Guarantor have failed to pay the amounts due. (SSUMF Nos. 5-8, 16-19, 25-28.) Plaintiff has met its burden as the moving party to show it is entitled to summary judgment on its causes of action for breach of contract and breach of guaranty against both Borrower and Guarantor. Defendants have not opposed the Motion in any attempt to raise a triable issue of material fact. Based on the above, the unopposed Motion for Summary Judgment is GRANTED. Plaintiff to prepare the appropriate order and judgment. Plaintiff to give notice.

114	**Coulter vs. General Motors, LLC** **23-01367354**	Motion for Hearing re: Fraudulent Inducement Claims Defendant, General Motors, LLC, requests a hearing under California Evidence Code section 402(a) as to Plaintiff's fraudulent inducement claims. The instant motion seeks a proffer of evidence in order for Plaintiff to proceed on a claim for fraudulent inducement at trial. No opposition has been filed. The instant motion for hearing under Evidence Code section 402(a) regarding Plaintiff's fraudulent inducement claims was filed on November 25, 2025, along with Defendant's Motion in Limine No. 9 while trial was set for January 12, 2026. Evidence Code section 402(a) states, "[w]hen the existence of a preliminary fact is disputed, its existence or nonexistence shall be determined as provided in this article." The Comments to Evidence Code section 402(a) states, "Subdivision (a) requires the judge to observe the procedures specified in Article 2 (commencing with Section 400) when he is determining disputed factual questions preliminary to the admission or exclusion of evidence." "As used in this article, 'preliminary fact' means a fact upon the existence or nonexistence of which depends on the admissibility or inadmissibility of evidence. The phrase 'the admissibility or inadmissibility of evidence' includes the qualification or disqualification of a person to be a witness and the existence or nonexistence of a privilege." (Evid. Code § 400.) "The court may hear and determine the question of the admissibility of evidence out of the presence or hearing of the jury." (Evid. Code § 402(b).)

		On January 12, 2026, the Court vacated the jury trial and set a Case Management Conference for March 3, 2026. (ROA 174.) The January 12, 2026, Minute Order notes, "[d]iscussion held regarding trial readiness and 998 offer that was made." Under these circumstances, the instant pre-trial motion requesting a hearing under Evidence Code section 402(a) is premature. Defendant's Motion is DENIED, without prejudice. Defendant to give notice.